No. 97-475

Supreme Court, U.S.
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IN THE

Supreme Court of the United States

OCTOBER TERM, 1997

EL AL ISRAEL AIRLINES, LTD.,

Petitioner,

—v.—

TSUI YUAN TSENG,

Respondent.

ON WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE SECOND CIRCUIT

BRIEF FOR PETITIONER

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QUESTION PRESENTED

Whether the Warsaw Convention, a treaty of the United States, exclusively governs and precludes any recovery for a passenger's injuries sustained in the course of "international transportation" if the injuries were not caused by an "accident" within the meaning of Article 17 of the Convention?

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ON WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE SECOND CIRCUIT

BRIEF FOR PETITIONER

OPINIONS BELOW

The opinion of the Court of Appeals for the Second Circuit is reported at 122 F.3d 99 (2d Cir. 1997) (JA 40-62).[1]

The opinion of the United States District Court for the Southern District of New York is reported at 919 F. Supp. 155 (S.D.N.Y. 1996) (JA 28-37).

JURISDICTION

The Judgment of the Court of Appeals for the Second Circuit was entered June 13, 1997. The jurisdiction of the Court is invoked under 28 U.S.C. § 1254(1).[2]

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[1] References to the Joint Appendix are indicated as "(JA ___)."

[2] The Rule 29.6 Statement of petitioner EL AL Israel Airlines, Ltd. was submitted with its petition for writ of *certiorari* to the United States Court of Appeals for the Second Circuit.

TREATY PROVISIONS INVOLVED

The articles of the Warsaw Convention[3] expressly involved are Articles 1, 17, and 24.

Article 1(1) of Chapter I, Scope—Definitions, provides:

> (1) This convention shall apply to all international transportation of persons, baggage, or goods performed by aircraft for hire. It shall apply equally to gratuitous transportation by aircraft performed by an air transportation enterprise.

49 Stat. 3014 (1934).

Article 17 of Chapter III, Liability of the Carrier, provides:

> The carrier shall be liable for damage sustained in the event of the death or wounding of a passenger or any other bodily injury suffered by a passenger, if the accident which caused the damage so sustained took place on board the aircraft or in the course of any of the operations of embarking or disembarking.

49 Stat. 3018 (1934).

Article 24 of Chapter III, Liability of the Carrier, provides:

> (1) In the cases covered by articles 18 and 19 any action for damages, however founded, can only be brought subject to the conditions and limits set out in this convention.
>
> (2) In the cases covered by article 17 the provisions of the preceding paragraph shall also apply, without prejudice to the questions as to who are the persons who

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[3] Convention for the Unification of Certain Rules Relating to International Transportation by Air, concluded at Warsaw, Poland, October 12, 1929, 49 Stat. 3000, T.S. No. 876, 137 L.N.T.S. 11 (1934), *reprinted in* 49 U.S.C.A. § 40105 (1997) (note) ("Warsaw Convention").

have the right to bring suit and what are their respective rights.

49 Stat. 3020 (1934).

STATEMENT

Respondent Tsui Yuan Tseng sued EL AL in the Supreme Court of the State of New York, New York County. (JA 10-11). Tseng alleged assault, false imprisonment and property damage in connection with her security screening conducted by EL AL prior to travelling on an EL AL flight to Israel. (JA 10-11). EL AL removed the case to federal court under 28 U.S.C. §§ 1331 and 1441 because EL AL is a "foreign state" within the meaning of 28 U.S.C. § 1603. (JA 1, R. 1).[4] Following a non-jury trial, the district court dismissed the personal injury claims and awarded damages with respect to the baggage claim. *See Tseng v. EL AL Israel Airlines, Ltd.*, 919 F. Supp. 155 (S.D.N.Y. 1996) (JA 28-37). The court below reversed the dismissal of the personal injury claims, affirmed the property damage award without comment and remanded the case to the district court to address the issue of recovery for Tseng's personal injury claims under state law. *See Tseng v. EL AL Israel Airlines, Ltd.*, 122 F.3d 99 (2d Cir. 1997) (JA 40-62).

Nature of the Case

On May 22, 1993, Tseng arrived at the EL AL terminal at John F. Kennedy International Airport in New York to travel on EL AL flight 008 to Israel. (JA 19). Upon presenting her ticket and passport to a security guard, she was admitted into the EL AL terminal. (JA 7, R. 31, Tr. 11-12).[5] Tseng then approached the security area and, in accordance with standard

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[4] References to the record are indicated as "(JA __, R. __)."

[5] References to the trial transcript are indicated as "(JA __, R. __, Tr. __)."

EL AL pre-boarding procedures, was questioned about her destination and travel plans. (JA 7, R. 31, Tr. 11-12). Based on her responses to these questions, she was considered a "high risk" passenger with an "illogical story" and was escorted into a private EL AL security room where her baggage and person were searched. (JA 7, R. 31, Tr. 69-70; JA 3, R. 10, Ex. E at 24-31, 57-58; JA 22 & 23). EL AL was searching for "[e]xplosives in any size, detonators, size from small, like the cap of the pen, and of course up from that." (JA 7, R. 31, Tr. 75). EL AL did not, at any time, use force in the search, and Tseng did not at any time object to the search. (JA 22).

Proceedings in the District Court

A non-jury trial was held March 7, 8 and 11, 1996 before the Honorable Louis L. Stanton of the United States District Court for the Southern District of New York. (JA 7, R. 31-33, Tr. 1-103).

At the conclusion of the trial, District Judge Stanton ruled, in accordance with his decision in *Shen v. Japan Airlines*, 918 F. Supp. 686 (S.D.N.Y.), *aff'd mem.*, 43 F.3d 1459 (2d Cir. 1994), that: (1) EL AL's allegedly offensive security search constituted an "accident" under Article 17; (2) although EL AL's security suspicions may have been mistaken, there was no evidence of wilful misconduct; and (3) there could be no recovery for Tseng's emotional distress injuries because she sustained no bodily injury. *See Tseng*, 919 F. Supp. 155 (JA 28-37).

Tseng appealed the dismissal of her emotional distress claims to the United States Court of Appeals for the Second Circuit pursuant to 28 U.S.C. §§ 2106 and 2107.[6] (JA 6, R. 29).

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[6] EL AL cross-appealed, pursuant to 28 U.S.C. § 1291, seeking to vacate the property damage award on the basis that the award improperly failed to uphold the fraud standard expressly prescribed by Article 26(4) of the Convention. (JA 7, R. 34).

Decision of the Court of Appeals

On appeal, the court below held that: (1) Tseng's personal injuries were not the result of an "accident" within the meaning of Article 17 of the Convention; (2) the Warsaw Convention does not govern *all* of Tseng's claims against EL AL, *i.e.*, the Convention applies to the passenger's property damage claims, but not to her personal injury claims; and (3) Tseng is entitled to pursue state law causes of action for her personal injury claims against the carrier. *See Tseng*, 122 F.3d 99 (JA 40-62). The decision, entered June 13, 1997, reversed and remanded the District Court judgment with respect to denial of any recovery for Tseng's personal injury claims and affirmed without comment the property damage award. (JA 9). A motion to recall and stay the mandate (issued July 8, 1997) was granted September 8, 1997. (JA 9). EL AL's petition for writ of *certiorari* was granted by the Court on May 18, 1998.

SUMMARY OF ARGUMENT

The judiciary is obliged to enforce the entire Warsaw Convention as drafted and intended. It is undisputed that, by its terms, the Warsaw Convention treaty applies to "all international transportation" and that, within the Convention, there are express provisions governing the liability of a carrier for damages occurring in the course of international transportation by air. The exclusivity dispute essentially centers on whether Article 24 of the Convention must be read to provide that a personal injury action for damages can be "founded" on state substantive law if the passenger does not have a right of recovery under "the conditions and limits set out in" Article 17. EL AL, with the concurrence of the Solicitor General, the International Air Transport Association ("IATA") and the Air Transport Association of America ("ATA"), submits that the court below improperly ruled that the cause of action created by Article 17 is not exclusive and permits resort to state law

when it fails to provide a right of recovery for a passenger injury or death claim.

The decision of the court below begins with the faulty premise that the terms and conditions to recovery under Article 17 must be satisfied for the Convention to "apply" or govern a passenger's claims. *Tseng*, 122 F.3d at 104-05 (JA 54). Article 17 dictates when "a carrier shall be liable" for personal injury or death. Article 17 is the controlling law *whenever* a passenger injury or death is sustained, as here, in the course of international transportation. The conditions set forth in Article 17 determine whether a passenger can recover for alleged harm, not whether the Convention applies to the alleged harm. This distinction has been at the heart of the controversy regarding the exclusivity debate.

Construction of the text of the Convention must begin with Article 1. Article 1, in clear and unambiguous terms, states:

> This convention shall apply to *all* international transportation of persons, baggage, or goods performed by aircraft for hire.

49 Stat. 3014 (1934) (emphasis added). "The word 'all' is important, simply because it is so all-embracing." *Abnett v. British Airways plc*, [1997] 1 All E.R. 193 (H.L. 1996) (U.K.) (Pet. App. 51a).[7] The text of the Warsaw Convention, as a treaty of the United States and the supreme law of the land, may not be judicially re-written on the basis that its express language results in a particular passenger being deprived of a right of recovery. EL AL urges reversal of the judgment of the court below because it is *only* within the Convention that a party may seek recovery for injuries sustained in the course of international transportation by air. The lower court improperly permitted resort to state law causes of action in a Warsaw

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[7] The *Abnett* decision is reprinted in full in the Appendix to the petition for writ of *certiorari*. Citations to *Abnett* are indicated as "(Pet. App. __a)."

Convention personal injury case, thereby creating liability where none was intended to exist.

Tseng's action against EL AL cannot exist outside the terms of the Warsaw Convention because:

(1) In plain and unambiguous terms, Articles 1, 17 and 24 of the Convention provide that with respect to "all international transportation" by air, any action against a carrier "for damage sustained in the event of the death or wounding of a passenger or any other bodily injury suffered by a passenger" "can only be brought subject to the conditions and limits set out in this convention";

(2) Resorting to state law claims where the conditions for Article 17 recovery are not met is wholly inconsistent with the Warsaw Convention's goals of uniformity and limited liability and contradicts the comprehensive scheme of "checks and balances" set forth in the Convention's chapter on carrier liability;

(3) The predecessor drafts of the Convention, the discussions by legal experts entrusted with drafting the Convention and the negotiations among the delegates at the Warsaw Conference in 1929 (which led to the final draft of the Convention) reflect that the treaty created the exclusive basis for carrier liability for claims of passenger injury or death;

(4) Governments of signatory nations to the Convention and the carriers which are bound by the Convention have construed this treaty as exclusive;

(5) The Solicitor General, as representative of the United States, has expressed the view that the Convention applies exclusively; and

(6) In *Abnett*, the court of last resort of a sister signatory that shares our common law heritage concluded that the Convention is exclusive.

The decision of the lower courts (including the decision of the court below), permitting resort to state law where a pas-

senger's claim arises during international air transportation but where the conditions precedent to carrier liability under Article 17 are not met, ignore the plain language of the Convention and improperly engage in judicial reconstruction of the express terms of a treaty.

Accordingly, just as the Court corrected twenty years of misapplication of Article 3 by the lower courts in *Chan v. Korean Air Lines, Ltd.*, 490 U.S. 122 (1989), the Court should correct the misapplication of Articles 17 and 24, reverse the judgment of the court below and hold that the Warsaw Convention exclusively governs a passenger's right, if any, to recover for personal injuries sustained in the course of international transportation by air.

ARGUMENT

I

THE TEXT OF THE WARSAW CONVENTION PROVIDES THE EXCLUSIVE CAUSE OF ACTION FOR A PASSENGER ALLEGING INJURY DURING INTERNATIONAL TRANSPORTATION BY AIR

The Warsaw Convention has been the supreme law of the land since 1934 and is exclusive of all local laws on matters covered by this treaty. *See* U.S. Const. art. II, § 2; 49 U.S.C.A. § 40105; 49 Stat. 3000 (1934); *Air France v. Saks*, 470 U.S. 392, 406 (1985); *see also United States v. Belmont*, 301 U.S. 324, 331-32 (1937) (where judicial treaty interpretation is involved, "state constitutions, state laws, and state policies are irrelevant to the inquiry and decision").[8]

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[8] Only Congress may denounce the Convention or supplement the Convention by creating a statutory right of action in addition to those provided under the Convention. *See Lemnitzer v. Philippine Airlines*, 783 F. Supp. 1238, 1241 (N.D. Cal. 1991), *citing*, *McCulloch v. Sociedad Nacional de Marineros de Honduras*, 372 U.S. 10, 21 (1963).

A. The Rules For Treaty Interpretation Are Well Established

The interpretation of a treaty begins "with the text of the treaty and the context in which the written words are used." *Saks*, 470 U.S. at 397; *see also Eastern Airlines, Inc. v. Floyd*, 499 U.S. 530, 534 (1991). *Accord* Vienna Convention on the Law of Treaties, arts. 31 & 32, 1155 U.N.T.S. 331, T.S. No. 58 (1980), 8 I.L.M. 679 (1969) (treaties should be interpreted in good faith by considering the ordinary meaning of the words in their context in light of the treaty's object and purpose).[9]

Because the Warsaw Convention is a contract among sovereign nations,[10] the judiciary's role is limited to giving effect to the "shared expectations" and intent of the contracting parties. *Saks*, 470 U.S. at 399; *see also Volkswagenwerk Aktiengesellschaft v. Schlunk*, 486 U.S. 694, 699 (1988); *Sumitomo Shoji Am., Inc. v. Avagliano*, 457 U.S. 176, 185 (1982); *Sanjovincenzo v. Egan*, 284 U.S. 30, 40 (1931).[11] This requires the judiciary to give regard to the context in which the terms of the treaty are used and the circumstances under which the treaty was drafted. *See* Restatement (Second) of Foreign Relations Law § 146 (1965); I. Lauterpacht, *Oppenheim's International Law* 953 (8th ed. 1955) (courts should

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[9] Although the United States has not ratified the Vienna Convention on the Law of Treaties, Restatement of Foreign Relations notes that the interpretive provisions "represent generally accepted principles." Restatement (Third) of Foreign Relations Law § 325 cmt. a. (1987); *see also Sale v. Haitian Centers Council, Inc.*, 509 U.S. 155, 190 (1993); *Weinberger v. Rossi*, 456 U.S. 25, 29 n5 (1982).

[10] *See Trans World Airlines, Inc. v. Franklin Mint Corp.*, 466 U.S. 243, 282 (1984); *De Geofroy v. Riggs*, 133 U.S. 258, 271 (1890).

[11] Treaty interpretation may require consideration of three major factors: (1) the text of the treaty, (2) the intention of the parties and (3) the object and purpose of the treaty. *See* T.O. Elias, *The Modern Law of Treaties* 72 (1974). "[T]he basic approach most favored is the textual interpretation of a treaty." *Id.*

consider the treaty's "purpose, the motives which led to its conclusion, and the conditions prevailing at the time").

Where, as here, the text is clear, the Court may not "alter, amend, or add to [the] treaty, by inserting any clause, whether small or great, important or trivial." *Chan*, 490 U.S. at 135 (*quoting The Amiable Isabella*, 6 Wheat 1, 71, 5 L. Ed. 191 (1821)). If a court inserts an amendment to a treaty, such conduct is "an usurpation of power, and not an exercise of judicial functions. It would be to make, and not to construe a treaty." *Id.*

Thus, it is clear that the Court is

> to find out the intention of the parties by just rules of interpretation applied to the subject matter; and having found that, [the Court's] duty is to follow it as far as it goes, and to stop where that stops—whatever may be the imperfections or difficulties which it leaves behind.

Id.

B. The Text Of The Warsaw Convention Establishes The Treaty As The Exclusive Basis For Carrier Liability During International Transportation By Air

1. Article 1 mandates the application of the Warsaw Convention to all international transportation by air

The Warsaw Convention expressly applies to "all international transportation of passengers, baggage or goods performed by aircraft," when "for hire" or "gratuitous[ly] . . . performed by an air transportation enterprise." Article 1 (1). 49 Stat. 3014 (1934). In *Block v. Compagnie Nationale Air France*, 386 F.2d 323, 327 (5th Cir. 1967), *cert. denied*, 392 U.S. 905 (1968), the Court of Appeals for the Fifth Circuit concluded that Article 1 is "unambiguous" and recognized the three express exceptions to the "wide sweep" of Article 1's scope:

(1) "transportation performed under the terms of any international postal convention" (Article 2(2));

(2) "international transportation by air performed by way of experimental trial by air navigation enterprises" (Article 34); and

(3) "transportation performed in extraordinary circumstances outside the normal scope of an air carrier's business" (Article 34).

See also 1 C. Shawcross & K. Beaumont, *Air Law* ¶ VII(112) (4th ed. 1998) ("The Convention did not purport to deal with all matters relating to contracts of international carriage by air. But in those areas with which it dealt—and the liability of the carrier was one of them—the code was intended to be uniform and to be exclusive also of any resort to the rules of domestic law.").

The drafters identified the exceptions to the Convention's application. The Convention clearly was intended to apply to *all* international transportation by air, except where so noted in the Convention.

Article 1's application to *all* international transportation reflects the two preponderant goals of the drafters in 1929:

(1) to create a uniform law permitting recovery for claims arising out of international transportation, but also

(2) to limit the carrier's potential liability for claims of personal injury or death and avoid the application of varying local laws.[12] *See In re Air Disaster at Lockerbie, Scotland on Dec. 21, 1988*, 928 F.2d 1267, 1270 (2d Cir.), *cert. denied*, 502 U.S. 920 (1991) (*"Lockerbie"*), *citing*, Andreas F. Lowenfeld & Allen I. Mendelsohn, *The United States and the Warsaw Convention*, 80 Harv. L. Rev. 497, 498-99 (1967); *Benjamins v. British European Airways*, 572 F.2d 913, 919

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[12] As noted *infra* at 18 n19, at the time the Warsaw Convention was drafted, carriers were able to disclaim any liability to passengers in a majority of the countries of the world.

(2d Cir. 1978), *cert. denied*, 439 U.S. 1114 (1979); *Block*, 386 F.2d at 327.

Thus, the Court has recognized the interest of the signatories to provide uniformity in this area of law. *See Zicherman v. Korean Air Lines Co.*, 516 U.S. 217, 230 (1996) ("Undoubtedly it was a primary function of the Warsaw Convention to foster uniformity in the law of international air travel"); *Floyd*, 499 U.S. at 552 ("Warsaw Convention's stated purpose of achieving uniformity of rules governing claims arising from international air transportation"); *see also Reed v. Wiser*, 555 F.2d 1079, 1090 (2d Cir.) (a "fundamental purpose" of the signatories "was their desire to establish a uniform body of world-wide liability rules to govern international aviation, which would supersede with respect to international flights the scores of differing domestic laws, leaving the latter applicable only to the internal flights of each of the countries involved") (footnotes omitted), *cert. denied*, 434 U.S. 922 (1977).

The court below failed to uphold the interest of uniformity by misplaced reliance on the *Zicherman* decision, believing *Zicherman* supports the proposition that "the Convention expresses no compelling interest in uniformity that would warrant . . . supplanting an otherwise applicable body of law, here state law." *Tseng*, 122 F.3d at 107 (JA 60). *Zicherman*, however, addresses the issue of the *measure* of recovery under the Convention, which the Court found had been intended by the drafters specifically to be a matter of the applicable state's law. 516 U.S. at 225 (Article 17 leaves to domestic law what passengers "may be compensated for").

State law supplements the Convention only where the Convention so stipulates (such as compensable damages). Unlike the issue of recoverable damages, the treaty's goal of uniformity is *fundamental* to the issue of substantive carrier liability. *See Garcia v. Aerovias de Mexico, S.A.*, 896 F. Supp. 1216, 1218 (S.D. Fla. 1995) ("[T]his court does not believe that 'concerns about uniformity' are satisfied by the Warsaw

Convention's exclusive remedy. Instead, the Warsaw Convention preempts state law claims and provides an exclusive federal cause of action and remedy for cases involving international air transportation.").

2. Article 24 unambiguously provides that Article 17 is the sole basis for a right of recovery for passenger injury or death during international transportation by air

Articles 17 and 24 provide:

Article 17

> The carrier shall be liable for damage sustained in the event of the death or wounding of a passenger or any other bodily injury suffered by a passenger, if the accident which caused the damage so sustained took place on board the aircraft or in the course of any of the operations of embarking or disembarking.

49 Stat. 3018 (1934).

Article 24

> (1) In the cases covered by articles 18 and 19 any action for damages, however founded, can only be brought subject to the conditions and limits set out in this convention.
>
> (2) In the cases covered by article 17 the provisions of the preceding paragraph shall also apply, without prejudice to the questions as to who are the persons who have the right to bring suit and what are their respective rights.

49 Stat. 3020 (1934).

The practical construction of the text of Articles 17 and 24, when read with the all-embracing language of Article 1, is that the Convention is the sole basis for a right of recovery against an air carrier for claims arising in the course of inter-

national transportation. *Accord Romano v. British Airways*, 943 F. Supp. 623 (N.D. W. Va. 1996) ("plain language" of Article 24 completely preempts any other cause of action for delay).

A natural reading of Article 24(2) together with Article 24(1) must be:

> *In the cases covered by article 17, any action for damages, however founded, can only be brought subject to the conditions and limits set out in this convention, without prejudice to the questions as to who are the persons who have the right to bring suit and what are their rights.*

When courts have read Article 24 as a whole, and in the context of the other provisions of the treaty and its stated purpose, they have concluded the Convention is exclusive and preclusive. *See Potter v. Delta Air Lines, Inc.*, 98 F.3d 881, 885 (5th Cir. 1996); *Boehringer-Mannheim Diagnostics, Inc. v. Pan Am. World Airways, Inc.*, 737 F.2d 456, 458-59 (5th Cir. 1984), *cert. denied*, 469 U.S. 1186 (1985); *see also Garcia*, 896 F. Supp. at 1218; *Luna v. Compania Panamena De Aviacion, S.A.*, 851 F. Supp. 826, 831 (S.D. Tex. 1994); *Alvarez v. Servicios Aereos de Honduraś, S.A.*, 24 Av. Cas. (CCH) 17,888, 17,890 (S.D. Tex. Jan. 11, 1994); *Jack v. Trans World Airlines, Inc.*, 820 F. Supp. 1218, 1223 (N.D. Cal. 1993); *Velasquez v. Aerovias Nacionales de Colombia, S.A.*, 747 F. Supp. 670, 676 (S.D. Fla. 1990); *Salazar v. Mexicana Airlines*, 20 Av. Cas. (CCH) 17,114, 17,115 (W.D. Tex. Mar. 10, 1986); *Recumar Inc. v. KLM Royal Dutch Airlines*, 608 F. Supp. 795, 797-98 (S.D.N.Y. 1985).

The Fifth Circuit in *Potter*, unlike the court below or the Third Circuit in *Abramson v. Japan Airlines Co.*, 739 F.2d 130, 133 (3d Cir. 1984), *cert. denied*, 470 U.S. 1059 (1985), read the express preemption language in Article 24 as preclusive. *Potter* found that the "subject matter of the Convention requires uniformity." 98 F.3d at 885. Thus, upholding the preemptive force of Article 24(2), the Fifth Circuit stated:

> Mrs. Potter . . . reads the preemption language in article 24(2) to prohibit state law causes of action only where a claim has been adjudicated an "accident" and deemed compensable under the Warsaw Convention. We disagree.

98 F.3d at 885 (footnotes omitted).

The Court also should disagree. It is antithetical to interpret Articles 17 and 24(2) as providing that a passenger can seek redress outside the Convention.

a. Courts have erroneously isolated the Article 24 phrase "In the cases covered by Article 17" to avoid finding the treaty exclusive

Despite Article 24's declaration that any personal injury or death action may be based only on the terms of the Convention, courts often have engaged in a painstaking parsing of various phrases within Article 24 to avoid the inexorable conclusion that the Convention's cause of action is exclusive and completely preempts state law claims.

One of the misconstrued phrases in Article 24 is: "In the cases covered by Article 17 . . . ."[13] *See, e.g., Tseng*, 122

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[13] The only authentic text of the Warsaw Convention is in French; thus, the Court has analyzed the French text to guide its analysis. *See Floyd*, 499 U.S. at 535; *Saks*, 470 U.S. at 399. The French text of this phrase reads: "[d]ans les cas prévus à l'article 17". A literal translation of the clause is "in the circumstances anticipated [or "foreseen"] in article 17." *See* Cassell's New French Dictionary 130, 565-66 (5th ed. 1951). The phrase has also been translated: "In the cases provided for in article [17] . . . ." *Second International Conference on Private Aeronautical Law Minutes* at 265 (Robert C. Horner & Didier Legrez trans., 1975) (*"Warsaw Minutes"*).

The English translation of the phrase "cases covered by" is based on the French "prévus" (from the infinitive "prévoir"), which was defined broadly in contemporaneous dictionaries. *See, e.g.*, The Concise Oxford French Dictionary at 662 (1934) ("to foresee, to anticipate, to conjecture, to forecast, to look forward to, to provide for"). Thus, arriving at the meaning of a phrase by isolating and translating its words

F.3d at 104 (JA 54); *Abramson*, 739 F.2d at 133-34 (*quoting Husserl v. Swiss Air Transport Co.*, 351 F. Supp. 702 (S.D.N.Y. 1972), *aff'd*, 485 F.2d 1240 (2d Cir. 1973)); *see also Sakaria v. Trans World Airlines*, 8 F.3d 164, 173 (4th Cir. 1993), *cert. denied*, 511 U.S. 1083 (1994) (dicta); *Walker v. Eastern Air Lines*, 785 F. Supp. 1168, 1172-73 (S.D.N.Y. 1992); *Fischer v. Northwest Airlines*, 623 F. Supp. 1064 (N.D. Ill. 1985). The court below inaccurately interpreted this clause to mean that the Convention applies only if the passenger has met all of the conditions to a right of recovery under Article 17, to wit—the Convention applies only where it provides a right of recovery (*i.e.*, physical injury caused by an "accident" on board the aircraft or in the course of embarking or disembarking), and then it is exclusive and completely preempts state law. *Tseng*, 122 F.3d at 104-05 (JA 54-55).

According to such faulty reasoning, Tseng, who is not entitled to any recovery under Article 17, has been permitted to resort to state substantive law despite Article 24's express application of state law only as to matters of procedure and measure of damages. The court below states that its narrow reading of Article 24(2) is an express reading of the text, but in reality it is only a reading of the single phrase "in the cases covered by Article 17."

As noted by the Solicitor General[14] and the House of Lords,[15] to achieve a practical construction of the "in the

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results in varying interpretations and, therefore, differing conclusions, none of which is necessarily dispositive. *See Abnett* (Pet. App. 55a) ("exact analysis" of each word of the phrase "in the cases covered by" is improper as the phrase should be interpreted in "consideration of the whole purpose of the article"). A literal translation only is helpful when one is looking at a word, not a phrase, in isolation. *See, e.g., Floyd*, 499 U.S. at 537 ("lésion corporelle"); *Saks*, 470 U.S. at 399-400 ("accident").

[14] *Amicus* Br. at 14 (the phrase simply serves as a "shorthand" for personal injury cases in general, as distinguished from checked baggage or delay cases "covered by Articles 18 and 19").

[15] *Abnett* (Pet. App. 55a) ("The phrase 'in cases covered by article 17' extends therefore to all claims made by the passenger against the

cases covered by" phrase, it must be read in relation to the entirety of Articles 1, 17 and 24. The Convention expressly provides in Article 1 that it *applies to all international transportation*. Article 17 sets forth the circumstances in which a carrier "shall be liable" for harm to a passenger that arose during international transportation: (1) the passenger suffered physical injury; (2) his damages were caused by an "accident"—an unusual or unexpected event or happening external to the passenger—and (3) the accident occurred on board the aircraft or in the course of the operations of embarking or disembarking. *Floyd*, 499 U.S. at 535-36. Courts misread Article 24 to mean that the Convention does not "apply" if the carrier "shall *not* be liable" under Article 17.

The lower court's concern that a carrier could possibly escape liability for injuries occurring on the carrier's premises at the airport (*e.g.*, falling off an escalator) prior to embarking or after disembarking is without merit. *See Tseng*, 122 F.3d at 107 (JA 59-60). For claims of personal injury, Article 17 makes the carrier liable for bodily injury only which is the result of an "accident" "on board the aircraft or in the course of any of the operations of embarking or disembarking."[16] Consequently, the Convention does not purport to extend to claims arising before the process of embarking or after disembarking because the harm would not have been sustained in the course of international transportation. However, if a passenger cannot establish the substantive conditions for a right of recovery under Article 17 (*i.e.*, bodily

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carrier . . . other than claims for damage to . . . baggage . . . under article 18 and claims for delay . . . under article 19.").

[16] Respondent does not dispute that she was in the course of embarkation. The security search conducted by EL AL satisfies the tests followed by the courts of appeals to determine if a passenger is in the course of embarkation or disembarkation. *Compare Buonocore v. Trans World Airlines, Inc.*, 900 F.2d 8 (2d Cir. 1990); *Schroeder v. Lufthansa German Airlines*, 875 F.2d 613 (7th Cir. 1989); *Evangelinos v. Trans World Airlines, Inc.*, 550 F.2d 152 (3d Cir. 1977); *Day v. Trans World Airlines, Inc.*, 528 F.2d 31 (2d Cir. 1975), *cert. denied*, 429 U.S. 890 (1976).

injury (*Floyd*) caused by an "accident" (*Saks*)[17] in the course of international transportation), the passenger is not permitted to seek recourse outside the Convention.[18]

An undisputed goal of the Warsaw Convention delegates was to limit the potential liability of air carriers "in order to foster the growth of the fledgling commercial aviation industry." *Floyd*, 499 U.S. at 546. As acknowledged by the Court, the signatories in 1929 "were more concerned with protecting air carriers and fostering a new industry than providing full recovery to injured passengers."[19] *Id.* Accordingly, the Court

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[17] The district court held that the "routine search, applied erroneously to plaintiff in the course of embarking on the aircraft, is fairly accurately characterized as an accident; that is to say, an unexpected or unusual event or happening external to the passenger." *Tseng*, 919 F. Supp. at 158 (JA 31-32). In rendering its decision, the court expressly relied on the definition of an Article 17 "accident" as set forth in *Saks*, "flexibly applied after assessment of all the circumstances surrounding a passenger's injuries." *Tseng*, 919 F. Supp. at 157 (*quoting Saks*, 470 U.S. at 405) (JA 30).

The term "accident" as used in the 1929 French text is varied enough to include circumstances far greater than suggested by the court below. Contemporaneous definitions of the term "accident" are broad and, thus, "accident" should be interpreted as such. *See, e.g.*, The Concise Oxford French Dictionary at 8, defining accident as "accident, chance, occurrence, incident; mishap, misfortune, casualty; unevenness, irregularity in structure, varied aspect, undulation; (med.) unexpected symptom, sudden complication; (mus. paint.) accidental; (gram.) accidence."

[18] This is consistent with the liability rules of civil law countries, upon which the Convention is designed. In civil law countries, nearly every right of action has been created by code or statute and, thus, if a person cannot satisfy the express terms of the code provision, he does not have a right of action. *See, e.g.*, Sam Walker, *Conflict of Laws*, 23 Akron L. Rev. 19, 23 (1989); *see also Lockerbie*, 928 F.2d at 1279 ("[T]he Convention was drafted against a civil law background that placed the cause of action in contract. . . . The bodies of common and civil law of contract are not identical.") (citations omitted).

[19] The court below had stated that "excluding state law claims where the Convention does not apply is inconsistent with the Convention's goal of protecting passengers." *Tseng*, 122 F.3d at 107 (JA 61). The

concluded that the term "lésion corporelle" in Article 17 refers only to bodily injury. The Warsaw signatories made a "legislative choice" to deny passengers recovery for psychic injuries unaccompanied by physical injury.[20] *Id.* Likewise, the contracting parties' "legislative choice" that the Convention provide the sole basis of redress for a personal injury sustained during international transportation should be respected in this case.

The court below misconstrued the IATA Intercarrier Agreement on Passenger Liability. *See Tseng*, 122 F.3d at 107-108 (JA 61-62).[21] As pointed out in the *amici* briefs submitted by IATA, the ATA and the Solicitor General in support of the petition, the IATA Intercarrier Agreement continues to presume that the Warsaw Convention is the exclusive basis for a plaintiff's action for personal injury or death arising during international transportation.[22]

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delegates clearly desired to balance the interests of the passengers with those of the carrier; but, the Convention's compromise, with respect to passengers, was foregoing the then acceptable full disclaimer of liability on the part of the carrier in favor of a new imposition of liability only as prescribed by the Convention. *See Warsaw Minutes* at 47-48 (cited in full in petition for writ of *certiorari* at 12-13 n8).

[20] The drafters also provided, in Article 20, for situations where the passenger could have sustained bodily injury as a result of an Article 17 accident and still be entitled to no recovery. Although carriers operating into and through the United States have waived the Article 20 defense, this article is another example where the drafters made a conscious choice to deny recovery to an injured passenger. *See* Agreement Relating to Liability Limitations of the Warsaw Convention and the Hague Protocol, Agreement CAB 18900, approved by CAB Order E-28680, May 13, 1966, 31 Fed. Reg. 7302 (1966).

[21] *International Air Transport Association: Agreement Relating to Liability Limitations of the Warsaw Convention*, approved by D.O.T. Order 97-1-2, 1997 WL 4834 (D.O.T. Jan. 8, 1997). The Court must look to the "expectations" of the "continental jurists" who drafted the Convention. *Saks*, 470 U.S. at 399; *see also Rocca v. Thompson*, 223 U.S. 317, 331 (1912).

[22] This is necessarily so because a treaty is the supreme law of the land in the United States and, thus, the majority of Foreign Air Carrier

To permit a state law claim when a passenger fails to show that an accident caused the alleged injury or that he or she suffered bodily harm would create carrier liability where, by the express terms of Articles 1, 17 and 24, none was intended to exist. The court below concluded that Tseng's injury was not caused by an Article 17 "accident".[23] The court below, therefore, should have affirmed the dismissal of Tseng's personal injury claims against EL AL.

While the court below may have been motivated by a desire to provide Tseng with a cause of action, the decision effectively, and improperly, subordinated the supreme law of the land to the common law of the several states. *See Velasquez*,

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Permits on file with the Department of Transportation stipulate that the Warsaw Convention exclusively governs international air transportation as evidenced by the recognition afforded the Warsaw Convention in the Permit's Attachment (a/k/a Appendix). *See also* ATA *Amicus* Br. at 7; JA 26; JA 7, R. 35 (Defendant's Exhibit A. Certified copy of EL AL's International Passenger Rules and Fares Tariff, NTA (A) No. 324, ¶C.A.B. No. 530, Rule 55 *LIABILITY OF CARRIERS* "(B) *LAWS AND PROVISIONS APPLICABLE* (1) Carriage hereunder is subject to the rules and limitations relating to liability established by the Convention . . . unless such carriage is not 'international carriage' as defined by the Convention.").

[23] Based on the doctrine that a treaty construction resulting in a favorable recognition of rights under the treaty supersedes a construction resulting in a restriction of rights, the search of Tseng could be considered an "accident" to bring her claim within Article 17. *See, e.g., De Geofroy*, 133 U.S. at 271 (just as the District of Columbia was considered a "state" under the terms of a treaty between the United States and France, Tseng's claims may be considered the result of an "accident" under the Convention). *See Thach v. China Airlines, Ltd.*, No. 95 Civ. 8468, 1997 WL 282254 (S.D.N.Y. May 27, 1997); *Uwagbai v. Alitalia Airlines*, 24 Av. Cas. (CCH) 17,811 (D. Mass. Jan. 20, 1994). *Compare Krys v. Lufthansa German Airlines*, 119 F.3d 1515 (11th Cir.), *reh'g denied en banc*, 130 F.3d 446 (11th Cir. 1997), *cert. denied*, 118 S. Ct. 1042 (1998); *DeMarines v. KLM Royal Dutch Airlines*, 580 F.2d 1193 (3d Cir. 1978); *Curley v. American Airlines, Inc.*, 846 F. Supp. 280 (S.D.N.Y. 1994); *Walker v. Eastern Airlines*, 785 F. Supp. 1168 (S.D.N.Y. 1992).

Tseng still, however, would be entitled to no recovery from EL AL, because she did not sustain bodily injury. *See Floyd*, 499 U.S. 530.

747 F. Supp. at 676. *Accord Finkelstein v. Trans World Airlines, Inc.*, 15 Av. Cas. (CCH) 17,379, 17,380 (N.Y. Sup. Ct. Sept. 28, 1978) ("To the extent that some Federal decisions seem to indicate the viability of independent tort actions and the non-exclusivity of the Convention this Court, first, is not bound thereby and, second, does not agree therewith."). Allowing Tseng recovery for harm occurring in the course of international transportation required the Court to distort the text of Articles 1, 17 and 24 and to disregard the context in which the words in these articles were used by the drafters. As noted by the Court in *Saks*:

> Until Article 17 of the Warsaw Convention is changed by the signatories, it cannot be stretched to impose carrier liability for injuries that are not caused by accidents. It remains "our duty to enforce the treaties of the United States, *whatever they may be*, and . . . the Warsaw Convention remains the supreme law of the land."

Saks, 470 U.S. at 406 (*quoting Reed*, 555 F.2d at 1093) (emphasis added).

b. The lower courts similarly have misread the Article 24 phrase "any action for damages, however founded" to hold that a passenger's cause of action may be "founded" on state law

As noted by the court below in another of its decisions, *Lockerbie*, 928 F.2d at 1282, the "however founded" language has been subject to two interpretations. The incorrect view is that a state law cause of action, "however founded," may be brought against the carrier, and that the Convention provides only the exclusive remedies.[24] The correct, and the only

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[24] The Eleventh Circuit noted the divergent analyses of Article 24 by district and appellate courts. *See Floyd v. Eastern Airlines, Inc.*, 872 F.2d 1462, 1482 n33 (11th Cir. 1989), *aff'd*, 499 U.S. 530 (1991); *see also In re Mexico City Aircrash of Oct. 31, 1979*, 708 F.2d 400, 414 n25 (9th Cir. 1983); *Tokio Marine & Fire Ins. Co. v. McDonnell Douglas Corp.*, 617 F.2d 936, 942 (2d Cir. 1980); *In re Air Crash Disaster at*

sensible, construction of Articles 17 and 24 is that a plaintiff, whatever his damages, cannot circumvent the Convention by bringing an action other than one under Article 17. *See Potter*, 98 F.3d 881; *Jack*, 820 F. Supp. at 1223, 1225; *Stanford v. Kuwait Airlines Corp.*, 705 F. Supp. 142, 144 (S.D.N.Y. 1989) ("[T]he explicit language of the Convention . . . specifies that an action arising from international air carriage, 'however founded, can only be brought subject to the conditions and limits set out in this Convention'.").

The "however founded" phrase in Article 24 derives from the drafters' concern that certain heirs of a deceased passenger would lack standing under Article 17 because the Convention provides for a right to sue in contract but not in tort. *See, e.g., Potter*, 98 F.3d at 886 (recognizing that prior to the Convention and under the law of certain countries, passengers who were injured could sue for damages in either tort or contract but the Convention's express cause of action requires that they proceed only in contract); *see also Jack*, 820 F. Supp. at 1222; René H. Mankiewicz, *The Liability Regime of the International Air Carrier* 92, 93 (1981) (citations omitted). *Compare Benjamins*, 572 F.2d at 918 (posited alternative reading that the "however founded" language could have referred to "a number of possible factual bases for the envisioned action").

The phrase was intended to eliminate multiple actions and liabilities that could arise in some signatory nations where the carrier's liability can be based on principles of either tort or contract law. The *Lockerbie* court surmised that, based upon the drafting history of Article 24, the phrase "however founded" was intended to "prevent an injured party's relatives

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Gander, Newfoundland on Dec. 12, 1985, 660 F. Supp. 1202, 1221 & n43 (W.D. Ky. 1987); *Rhymes v. Arrow Air, Inc.*, 636 F. Supp. 737, 740 (S.D. Fla. 1986); G. Nathan Calkins, Jr., *The Cause of Action Under the Warsaw Convention*, Part II, 26 J. Air. L. & Com. 323, 327-28 (Autumn 1959); H. Drion, *Limitations of Liability in International Air Law* 70-71 (1954).

from bringing an independent action, outside the contract action which the injured person himself might bring, for loss of support." *Lockerbie*, 928 F.2d at 1285. *Accord Jack*, 820 F. Supp. at 1222 (contract/tort distinction eliminated in favor of cause of action "under the contract-law-based Convention").

A leading commentator's discussion of the text of Article 24 illustrates the misinterpretation of Articles 17 and 24 by the lower courts:

> The Convention *efficiently prevents the application of its liability rules from being circumvented by an action in tort* by providing in Article 24 that any action for damage under Articles 17 to 19, 'however founded', *i.e.* whether in contract or in tort, 'can only be brought subject to the conditions and limits set out in this Convention'; . . . . Consequently, 'the Convention *cuts down on common law causes of action*'; . . . .

Mankiewicz at 93 (citations omitted) (emphasis added). *Accord Potter*, 98 F.3d at 886 & n12; *see also In re Air Crash Disaster at Warsaw, Poland on Mar. 14, 1980*, 535 F. Supp. 833, 844-45 (E.D.N.Y. 1982) ("the Warsaw Convention specifically controls and exclusively governs any and all claims for damages arising out of the death or injury of a passenger engaged in international air transportation, and plaintiffs cannot maintain a separate wrongful death action for damages under California law"), *aff'd*, 705 F.2d 85 (2d Cir.), *cert. denied*, 464 U.S. 845 (1983).

Hence, courts improperly have parsed and strained the reading of the "however founded" phrase. The phrase was intended only to confirm that the Convention is the sole source of a passenger's right to sue for personal injury or death, irrespective of whether there would be a right under the laws of the various nations absent the Convention.

3. The preamble and other articles demonstrate the uniform and comprehensive framework regulating carrier liability during international transportation by air

The reference to international uniformity of law in the treaty's preamble, the scheme of checks and balances to determine carrier liability and the articles expressly reserving only certain areas for local law demonstrate that the Convention provides the exclusive basis for damages against a carrier.

a. The preamble makes clear that the Convention unifies the rules for the subjects addressed

The Court should uphold the purpose and object of the Convention as stated in the text of the Preamble:

> Having recognized the advantage of *regulating in a uniform manner the* conditions of international transportation by air in respect of the documents used for such transportation and *of the liability of the carrier*, . . .

49 Stat. 3014 (1934) (emphasis added).

The preamble proclaims, clearly and plainly, the drafters' express desire for uniform and exclusive application of the Convention to international transportation. *See Eggink v. Trans World Airlines, Inc.*, 22 Av. Cas. (CCH) 17,731, 17,733, 1990 WL 6553 (S.D.N.Y. Jan. 22, 1990) (recognizing the Preamble's express declaration of the "central purpose of the Convention"). *Accord In the Case Concerning Rights of Nationals of the United States of America in Morocco (France v. United States)*, 1952 I.C.J. 176, 196, 1952 WL 51 (I.C.J.) (citations omitted) ("The purposes and objects . . . were stated in its Preamble. . . . In these circumstances, the Court can not adopt a construction by implication. . . . 'It is the duty of the Court to interpret the Treaties, not revise them.' ").

b. The subject of "Liability of the Carrier" is regulated under its own chapter

The Liability Chapter of the Convention guides the Court as to the only circumstances of carrier liability. *See Abnett* (Pet. App. 52a-56a). Articles 17 through 25, when read sequentially, regulate in a uniform manner whether a carrier will be liable for a claim by a passenger:

Article 17	Provides when the carrier "shall be liable" for passenger injury or death.
Article 18	Provides when the carrier "shall be liable" for checked baggage and cargo.
Article 19	Provides when the carrier "shall be liable" for delay.
Article 20	Provides an exception to the presumptive liability of the carrier under Article 17.
Article 21	Provides another exception to the presumptive liability, in whole or in part, based on the contributory negligence of the passenger.
Article 22	Provides the maximum of the carrier's liability, subject to any exceptions to liability in the two preceding articles.
Article 23	Provides that any disclaimer of liability of the carrier is "null and void."
Article 24	Provides that any action by the passenger will lie only under the Convention.
Article 25	Provides that all of the provisions limiting the carrier's liability are lost if there is wilful misconduct on the part of the carrier.

This is the context in which Article 24 must be read. Articles 17, 18 and 19 create presumptive liability on the part of

the carrier, which may be negated, in whole or in part, under Articles 20 and 21. Article 22 limits the damage exposure of the carrier, unless Article 25 precludes the carrier from availing itself of the prescribed limit. Article 23 expressly voids any attempt by the carrier to disclaim liability and Article 24, in counterpoint, precludes a passenger from obtaining a recovery outside the terms of the Convention.

Thus, the scheme of the Liability Chapter precludes the Court from altering the delicately balanced rights of the passenger against those of the carrier.

c. The judiciary may not invoke state law where the Convention does not expressly so provide

It is telling to note that, where the drafters of the Convention intended that "local" law apply to a particular matter, the Convention expressly so states:

Article 21 — "If the carrier proves that the damage was caused by or contributed to by the negligence of the injured person the court may, in accordance with the provisions of its own law, exonerate the carrier wholly or partly from his liability."

Article 24(2) — "In the cases covered by Article 17 the provisions of the preceding paragraph shall also apply, without prejudice to the questions as to who are the persons who have the right to bring suit and what are their respective rights."

Article 25(1) — "The carrier shall not be entitled to avail himself of the provisions of this convention which exclude or limit his liability, if the damage is caused by his wilful misconduct or by such default on

his part as, in accordance with the law of the court to which the case is submitted, is considered to be equivalent to wilful misconduct."

Article 28(2) — "Questions of procedure shall be governed by the law of the court to which the case is submitted."

Article 29(2) — "The method of calculating the period of limitation shall be determined by the law of the court to which the case is submitted."

See Boehringer-Mannheim, 737 F.2d at 458; *Benjamins*, 572 F.2d at 917; *Reed*, 555 F.2d at 1092; *see also Potter*, 98 F.3d at 886 ("where the drafters of the Convention concluded that uniformity could not be achieved, they provided expressly for recourse to local law"), *citing*, *Zicherman*, 516 U.S. 217.

Article 17 does *not* contain any language permitting resort to state law; it is Article 24(2) that directs courts when to apply state law (to the issues of standing and compensable damages), yet the court below erroneously read such a provision into Article 17 of the Convention.

Just as the Court in *Chan* rejected the majority of decisions of the lower courts which had read an "adequate notice" requirement into Article 3 of the Convention (490 U.S. at 134 n5), the Court should reject the decisions (including that of the court below) which have read into Article 24 that a passenger is entitled to resort to state substantive law where Article 17 does not provide a right of recovery. Although upholding the terms and conditions of the Convention as the expression of the drafters' intent may result in instances where, as here, a passenger is not entitled to a right of recovery under the Convention, such a result must be accepted. Any other reading of the Convention would be at odds with the drafters' intentions. As the Court stated in *Chan*, "we must thus be governed by the text [of the treaty]." 490 U.S. at

134. And here, both the text and the context within which the written words are used preclude resort to state substantive law for personal injury or death claims against the carrier.

II

SUPPLEMENTARY MEANS OF INTERPRETATION OF THIS TREATY CONFIRM THAT THE WARSAW CONVENTION IS EXCLUSIVE

The terms of the Convention are not ambiguous and a natural reading of Articles 1, 17 and 24, when read in conjunction with the Convention as a whole, compel the conclusion that the cause of action under Article 17 is exclusive. The Court nevertheless may look "beyond the written words to the history of the treaty, the negotiations, and the practical construction adopted by the parties" to confirm or ascertain the meaning of Articles 1, 17 and 24, if it finds these articles to be "difficult or ambiguous passages." *Volkswagenwerk*, 486 U.S. at 700 (*quoting Saks*, 470 U.S. at 396, 400 (*quoting Choctaw Nation of Indians v. United States*, 318 U.S. 423, 431-32 (1943))); *see also Zicherman*, 516 U.S. at 224-27 (drafting history (*travaux préparatoires*) confirmed the Court's interpretation); *Floyd*, 499 U.S. at 535 (same).[25]

Additional aids to interpretation of the Warsaw Convention may include the post-ratification conduct and subsequent

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[25] *But see Chan*, 490 U.S. at 134 (in discussing whether to consider drafting history of Warsaw Convention, the Court held where, as here, the text is clear, the court has no power to insert an amendment); *Saks*, 470 U.S. at 400 (it is proper in interpreting a treaty to refer to the records of its drafting and negotiation to resolve ambiguities in the text); *Santovincenzo*, 284 U.S. at 40 (it is unnecessary to invoke liberal construction of treaties where the instant case merely calls for a reading of the provisions according to its terms; there is no applicable principle which permits us to narrow the ordinary meaning of terms); Vienna Convention on the Law of Treaties, Art. 32 (permitting resort to drafting records only if the text "leaves the meaning ambiguous or obscure; or . . . leads to a result which is manifestly absurd or unreasonable").

interpretation of the contracting parties to the Convention. *See, e.g., Zicherman*, 516 U.S. at 217; *Saks*, 470 U.S. at 403. *Accord Vimar Seguros v. M/V Sky Reefer*, 515 U.S. 528 (1995) (declining to interpret Hague Rules in a manner contrary to every other nation addressing the issue); *Franklin Mint Corp.*, 466 U.S. at 259 (the first 50 years of conduct of the contracting parties cannot be ignored).

The Court also has accorded the opinions of "sister signatories . . . great weight." *Saks*, 470 U.S. at 404; *see also Floyd*, 499 U.S. at 550; *Chan*, 490 U.S. at 135; *Benjamins*, 572 F.2d at 919. *Accord Abnett* (Pet. App. 48a-49a) (decisions by foreign courts, where they are of the appropriate standing and quality, may be helpful in pointing towards the interpretation of the Convention).

A. The Drafting And Negotiating History Reinforce The Conclusion That The Warsaw Convention Was Intended To Be Exclusive

In 1923, the French government, recognizing the need to adopt uniform rules relating to liability of air carriers, invited nations of the world to attend an international conference in Paris. Two years later, the French government distributed a preliminary protocol in advance of the First International Conference on Private Air Law. *See* John Jay Ide, *The History and Accomplishments of the International Technical Committee of Aerial Legal Experts (C.I.T.E.J.A.)*, 3 J. Air L. 26, 27-29 (1932).

At the 1925 Paris Conference, the official delegates from 44 countries, along with observers from the United States, Japan and Hungary, approved a draft convention. In addition, the delegates created a commission of international aviation experts, known as the *Comité International Technique d'Experts Juridiques Aeriens* ("CITEJA"), which continued to meet and revise the draft convention and to investigate other issues of private air law.

The draft convention in 1925 included the precursor to Articles 17 and 20 (Article 5 below).[26] From 1925 through 1928, the CITEJA members convened and revised the draft convention. At the Third Session of CITEJA, held in 1928, the draft convention contained three major chapters: the first, addressed definitions and objectives; the second, documents of carriage; and the third, liability rules relating to the carrier. G. Nathan Calkins, Jr., *The Cause of Action Under the Warsaw Convention*, Part I, 217, 221 (Summer 1959). All sources of carrier liability appeared in Article 22 (now Article 17).[27]

Article 5 [1925 Conference]	Article 22 [outset of Third Session]
The carrier is liable for *accidents, losses, breakdowns, and delays*. It is not liable if it can prove that it has taken reasonable measures designed to preempt damage	The carrier shall be liable for damage during carriage: (a) In case of death, wounding, or other physical bodily injury of every description suffered by a traveler;

1. The Warsaw Conference narrowed the 1928 preliminary draft of Article 17, which had proposed to make the carrier liable for "death, wounding or other bodily injury *of every description* suffered by a traveler"

During the Third Session, Article 22 became Article 21 (set forth below)[28] and liability was narrowed from encompassing injury of "*every description* suffered by a traveler" to simply

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[26] The *Saks* decision provides the language from the 1925 Conférence Internationale de Droit Privé Aérien in Paris. 470 U.S. at 401 (emphasis added).

[27] *Jack*, 820 F. Supp. at 1221-22 (emphasis added) (*quoting* Calkins, Part I at 221 (*reprinting and translating* preliminary draft of convention at outset of Third Session)).

[28] *Saks*, 470 U.S. at 401 (*quoting Warsaw Minutes* at 264-65).

"injury suffered by a passenger." The following year at the Warsaw Conference,[29] the delegates inserted the requirement of an accident and, in effect, further narrowed the terms of liability for death or bodily injury to the current Article 17,[30] *i.e.*, liability for harm "suffered by a passenger, if the accident which caused the damage so sustained took place on board the aircraft or in the course of any of the operations of embarking or disembarking." The qualifying accident clause did not even appear until the end of the Warsaw Conference. *Warsaw Minutes* at 205; *Jack*, 820 F. Supp. at 1225.

Article 21 [Warsaw Conference]	Article 17 [The Warsaw Convention]
The carrier shall be liable for damage sustained during carriage:	The carrier shall be liable for damage sustained in the event of the death or wounding of a passenger or any other bodily injury suffered by a passenger, if the accident which caused the damage so sustained took place on board the aircraft or in the course of any of the operations of embarking or disembarking. 49 Stat. 3018 (1934).
(1) in the case of death, wounding, or any other bodily *injury suffered by a traveler*;	

[29] In 1929, at the Second International Conference on Private Air Law held in Warsaw, Poland (the "Warsaw Conference"), the Convention was born. The Convention was signed by 23 states; it entered into force on February 13, 1933, 90 days after the deposit of the instruments of ratification by five states. By the end of 1933, most European nations had ratified the Convention and on October 29, 1934, the United States became a High Contracting Party. *Lockerbie*, 928 F.2d at 1271; *see also Franklin Mint Corp.*, 466 U.S. at 246-47.

[30] During the Warsaw Conference, the drafters also split Article 21 into three separate articles, now Articles 17, 18 and 19, "primarily because delegates thought that liability for baggage should commence upon delivery to the carrier, whereas liability for passengers should commence when the passengers later embark upon the aircraft." *Saks*, 470 U.S. at 402.

The narrowing of the circumstances when the carrier "shall be liable" shows that the Convention affirmatively limits carrier liability to injuries which are the result of an "accident" sustained during international transportation.

2. The evolution of Article 24 confirms that any action against the carrier must be based on the Convention

Comparing the earlier drafts of Article 24 (Articles 26 and 27 below),[31] with the draft presented at the Warsaw Conference[32] and its present language further validates a finding of exclusivity:

Article 26	Article 27
[outset of Third Session in 1928]	
In case of accident, loss, damage or delay, the liability action may not be brought against the carrier except on the basis of this convention, unless the damage arises through an intentional unlawful act as to which he bears the liability;	In case of death of the person holding the cause of action, every liability action, however founded[,] may be exercised, within the terms and limits provided by this convention, by those persons to whom such action belongs in accordance with the national law of the deceased or, in default of such law, in accordance with the law of the place of his last permanent residence.

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31 Calkins, Part I at 221-23 (preliminary draft of convention at outset of Third Session) (emphasis added).

32 *Warsaw Minutes* at 265.

Article 24 [Warsaw Conference]	Article 24 [The Warsaw Convention]
In the cases provided for in Article 21 [now Articles 17, 18 and 19], even in the case of death of the interested party, any liability action, however founded, can be brought only under the conditions and limits set forth by the present Convention.	(1) In the cases covered by articles 18 and 19 any action for damages, however founded, can only be brought subject to the conditions and limits set out in this convention.
If the damage arises from an intentional illicit act for which the carrier is responsible, he will not have the right to avail himself of the provisions of this Convention, which exclude in all or in part his direct liability or that derived from the faults of his servants.	(2) In the cases covered by article 17 the provisions of the preceding paragraph shall also apply, without prejudice to the questions as to who are the persons who have the right to bring suit and what are their respective rights. 49 Stat. 3020 (1934).

Article 26 of the CITEJA draft stated that in the case of accident, damage, loss or delay, the liability action could only be brought "on the basis of this convention" and, thus, that the Convention would be the exclusive basis for a passenger's recovery.[33] Article 27 of the draft provided that for death actions, "every liability action, however founded, may be exercised within the terms and limits provided by this Convention . . . ."[34]

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[33] The fact that the delegates chose to confine liability to the terms of the Convention, rather than *expand* carrier liability to include national law, demonstrates their goal of limiting the circumstances of liability and undermines the lower court's interpretation of Articles 17 and 24.

[34] As discussed *supra* at 22, the "however founded" language was inserted to resolve the issue of the standing of the heirs of a deceased

The CITEJA drafters subsequently merged Articles 26 and 27 into one article, which became Article 24.[35] The CITEJA Reporter explained the purpose of this merger:

> Since there had been eliminated from Article 27 the part relating to the person who would be entitled to bring suit on the death of the holder of the right, *the article no longer contained more than a declaration that all action[s] must be brought on the basis of the convention. This was a repetition of the same idea contained in Article 26.* The drafting subcommittee had therefore combined the two articles in a new Article 24 . . .

Jack, 820 F. Supp. at 1223 (*quoting* Calkins, Part I at 206 (*Proceedings of the Third Session of CITEJA* 66-67)) (emphasis added).

Thus, the draft continued to emphasize that the passenger's cause of action "can be brought only under the conditions and limits set forth by the present Convention." This history shows that the editing committee and CITEJA members viewed the predecessor articles to Article 24 as plainly requiring that suits be brought against the carrier solely "on the basis of the Convention." *Jack*, 820 F. Supp. at 1223 (comprehensive analysis of the drafting history confirms that the word "conditions" in Article 24 should be read as meaning the "fundamental basis," such that any action for damages could only be brought "on the basis of the Convention," *i.e.*, the Convention is exclusive).

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passenger who have no contractual relationship with the carrier and technically could not have a right of action under the contract-based regime of the Convention.

35 *Warsaw Minutes* at 265 (preliminary draft of convention).

3. The delegates at the Warsaw Conference debated the period of carriage that would implicate carrier liability; however, presumptive and preemptive liability remained unchanged

The delegates at the Warsaw Conference must have accepted that the Convention would be presumptive and exclusive, as evidenced by the delegates' focus on narrowing the "period of carriage"—*i.e.*, whether carriage extends "from the moment when travelers, goods or baggage enter into the aerodrome of departure to the moment when they leave the aerodrome of destination." *Warsaw Minutes* at 264.[36]

The Warsaw Conference minutes are probably "more notable" for their lack of discussion regarding preemption. *Jack*, 820 F. Supp. at 1225. The one and only comment expressly relating to the preemptive language of Article 24 was by the British Delegate, the only representative of a common law nation, who stated:

> We have at the beginning of the article: ". . . any liability action however founded can only be brought under the conditions and limits provided for by the present Convention."
>
> It's a very important stipulation which *touches the very substance of the Convention*, because this *excludes recourse to common law*; originally, it was a separate article.

Warsaw Minutes at 213 (emphasis added); *see also id.* at 65 ("In any case, recourse to national law must be ruled out."), 66 ("we are absolutely opposed to a formula that would lead to the application of national law"), 175-76 (the drafters rejected the

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[36] The delegates provided language in Articles 17 and 18 for different periods of carriage for passenger and cargo. The drafters realized that a carrier has control over goods at a different time than it would have "direction and supervision" over a passenger. *Martinez Hernandez v. Air France*, 545 F.2d 279, 282 (1st Cir. 1976), *cert. denied*, 430 U.S. 950 (1977).

Japanese Delegate's proposal which would provide for "freedom of choice" to apply a prior agreement for dispute resolution).

The drafters intended the Convention to provide the exclusive cause of action for any injury or death claim against the carrier, so long as the harmful event occurs either on board the aircraft or in the course of embarking or disembarking. Commenting on the Warsaw Conference, the Chairman of the U.S. Delegation at the Hague Conference to Amend the Warsaw Convention, 1955, stated:

> There is nothing to indicate any change in direction which would modify the original draft from a convention creating a complete system of liability based on the contract of carriage to one which merely imposed conditions and limitations on rights of action otherwise accorded under national law. On the contrary, the *evidence is overwhelming* that the conference reaffirmed the theory throughout that the *convention would establish a system of liability complete in itself*. This evidence is of two types. The first is the adoption of amendments to the Citeja draft which are compatible only with the complete liability system philosophy. The second is specific statements made on the floor of the conference.

Calkins, Part I at 227 (emphasis added).

B. The Conduct Of The Contracting Nations Has Been Consistent With The Signatories' Intent That The Warsaw Convention Provides The Exclusive Cause Of Action

After 1929, representatives of signatory nations convened on several occasions to amend the Warsaw Convention and to clarify provisions that may have been misinterpreted by the parties. Amendments to the language of Articles 17 and 24 were proposed at two such Conferences, the Guatemala City Conference in 1971 and the Montreal Conference in 1975.

These proposed amendments were to further the signatories' expectation that the Convention provides the exclusive basis for a right of recovery for damages sustained in the course of international transportation.

1. The Guatemala City Protocol reflects the signatories' understanding that the unamended Warsaw Convention makes a carrier potentially liable only for "accidents" and that the Convention is exclusive

Although the Guatemala City Protocol is not in force, the Court has referred to the amendments adopted at the 1971 Guatemala City International Conference on Air Law to clarify the meaning of the term "accident" in Article 17. *Saks*, 470 U.S. at 403-04. The Guatemala City delegates approved an amendment to Article 17[37] that would impose liability on a carrier for an "event which caused the death or injury," rather than for an "accident which caused" the passenger's injury. *Id.* at 403. The Guatemala City delegates discussed the fact that the term "event" expanded carrier liability to cover acts that may not be considered accidents. *Saks*, 470 U.S. at 403-04. The delegates also added a clause exempting the carrier from liability if the death or injury resulted "solely from the state of health of the passenger." *Id.*

In addition to amending Article 17, the delegates at Guatemala City amended Article 24(2). The phrase "in the cases covered by Article 17" was replaced with "in the carriage of passengers and baggage." This change in language was not intended to be a substantive change, but rather to reflect the consolidation of baggage actions with the passenger injury actions. The delegates also revised the "however founded" clause in Article 24 to read: "any action for dam-

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[37] *See* International Civil Aviation Organization, 2 *Documents of the International Conference on Air Law, Guatemala City*, ICAO Doc. 9040-LC/167-2 at 189 (1972).

ages, however founded, whether under this Convention or in contract or in tort or otherwise, ..." This additional language is consistent with the signatories' construction of Article 24 as exclusive.[38]

The unamended Warsaw Convention limits carrier liability exclusively to injuries caused by "accidents" in the course of international transportation; carriers are not liable for "events" other than "accidents" and there is no right of recourse to national law.

2. Montreal Protocol No. 4 furthers the exclusivity objective, while leaving Article 17 unchanged

Montreal Protocol No. 4, drafted in 1975, changes the language in Article 24; Montreal Protocol No. 4 does *not* change Article 17.[39] If ratified, Article 24, in relevant part, will be amended to read:

> 1. In the carriage of passengers and baggage, any action for damages, however founded, can only be brought subject to the conditions and limits set out in this Convention, without prejudice to the question as to who are the persons who have the right to bring suit and what are their respective rights.

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[38] The amendments in the Guatemala City Protocol were later incorporated in Montreal Protocol No. 3 (which is not expected to be ratified by the Senate). When Montreal Protocol No. 3 was being considered for ratification by the Senate, the Committee on Foreign Relations reported that the re-drafted Article 24 "makes clear that actions for damages whether founded on the 'Convention, or in contract or in tort or otherwise' can only be brought subject to the conditions and limits set out in the Convention." S. Exec. Rep. No. 45, 97th Cong., 1st Sess. 12 (1981); *Accord* S. Exec. Rep. No. 21, 101st Cong. 2d Sess. 15 (1990).

[39] The Solicitor General's Office has advised that the United States is actively considering ratifying Montreal Protocol No. 4, which adopts the Hague Protocol amendments (but not the Guatemala City Protocol amendments). *See* Letter of Seth Waxman, Solicitor General, Counsel of Record for the United States, to the Court dated July 1, 1998.

International Civil Aviation Organization, *2 Documents of the International Conference on Air Law, Montreal*, ICAO Doc. 9154-LC/174-2 at 273 (1975).

Thus, the amended Article 24, if ratified, continues to use the "however founded" language, but deletes "in the cases covered by" in favor of "in the carriage of." Irrespective of whether the Senate ratifies Montreal Protocol No. 4, however, the Protocol cannot "govern the disposition of this case" (*Saks*, 470 U.S. at 403), *i.e.*, whether the Warsaw Convention is exclusive where there is no Article 17 accident or no bodily injury. *See also* ATA *Amicus* Br. at 5 ("The lower court's reasoning misconstrues the scope of the Warsaw Convention, as applied by the courts of this country, and effectively rewrites Article 17.").

Even if the Senate ratifies Montreal Protocol No. 4, the issue on which the Court granted *certiorari* will remain unanswered. The Court has twice declined to address the issue of the exclusivity of the Convention. *See Floyd*, 499 U.S. 530; *Saks*, 470 U.S. 392. If ratified, Montreal Protocol No. 4 will be "a list of amendments to the Warsaw Convention" governing transportation only between those States adhering to the Protocol.[40] *Hyosung (Am.), Inc. v. Japan Air Lines Co.*, 624 F. Supp. 727, 728 (S.D.N.Y. 1985) (addressing the Hague Protocol, to which the United States will adhere upon ratification of Montreal Protocol No. 4). Article 17, however, will not be one of those amendments.

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[40] At this time, 30 of the over 120 signatories of the Warsaw Convention have adopted Montreal Protocol No. 4. If and when the Senate ratifies the Protocol, the United States remains in treaty relations with signatories to the unamended Convention, whether or not those countries adopt Montreal Protocol No. 4. Similarly, the United States will also remain in treaty relations with other signatories which adhere to the Convention as amended by Hague, but not Montreal Protocol No. 4. The common denominator among all signatory States, however, is the Warsaw Convention. *See In re Korean Air Lines Disaster of Sept. 1, 1983*, 664 F. Supp. 1463, 1469 (D.D.C. 1985), *aff'd*, 829 F.2d 1171 (D.C. Cir. 1987) (unrelated issue), *aff'd*, 490 U.S. 122 (1989) (same). Thus, the issue of exclusivity remains ripe for resolution by the Court.

Resolution of the exclusivity issue, therefore, affects all international transportation by air irrespective of whether courts are applying the unamended Warsaw Convention or Montreal Protocol No. 4. The Court should answer the exclusivity question presented in light of the Convention's expressed goals of uniformity *and* certainty. The Court should declare that the Warsaw Convention, whether unamended or amended pursuant to Montreal Protocol No. 4, provides the exclusive cause of action.

C. The Court Should Find The *Abnett* Decision By The Court Of Last Resort Of A Sister Signatory Persuasive

In *Abnett v. British Airways plc*, ([1997] 1 All E.R. 193 (H.L. 1996) (U.K.)), the House of Lords of the United Kingdom, a sister signatory to the Warsaw Convention, resolved the immediate issue before the Court. The House of Lords, finding the Warsaw Convention exclusive for actions brought in the United Kingdom of Great Britain and Northern Ireland, concluded that "where the Convention has not provided a remedy, no remedy is available." (Pet. App. 65a). Employing the tools of treaty interpretation, the House of Lords held that "in all questions relating to the carrier's liability, it is the provisions of the Convention which apply and that the passenger does not have access to any other remedies, whether under the common law or otherwise . . . ." (Pet. App. 55a).

Considering the "whole purpose" of Article 17, the Court concluded that the Warsaw Convention is to "prescribe the circumstances—that is to say, the only circumstances—in which a carrier will be liable in damages to the passenger for claims arising out of his international carriage by air." (Pet. App 55a).

> To permit exceptions, whereby a passenger could sue outwith the Convention for losses sustained in the course of international carriage by air, would distort the whole

> system, even in cases for which the Convention did not create any liability on the part of the carrier.

Id.

Placing the provisions in their historical context, the Court noted that Article 23 nullifies "[a]ny provision tending to relieve the carrier of liability," a generally accepted practice in the 1920's, a time when the Convention was in its genesis. (Pet. App. 54a); *see supra* at 18 n19. As noted by the House of Lords:

> To surrender freedom of contract on this issue was an important concession on the part of carriers, which made sense only in the context of the entire set of rules by which their conduct was to be regulated.
>
> The counterpart of what was plainly a compromise is to be found in . . . Article 24. This Article provides that in the cases covered by . . . Article 17 . . . "any action of damages, however founded, can only be brought subject to the conditions and limits set" by the Convention.

Id.

The compromise made was that the carrier surrendered its freedom to exclude or limit liability, but the passenger would be restricted to bringing an action for damages solely under the conditions and limits of the Convention.[41] Thus, based on the text of the Convention and its intended purpose, the House of Lords decreed that the Convention was intended to be uniform and exclusive of any resort to domestic law. As stated in *Abnett*:

> The idea that an action for damages may be brought by a passenger against the carrier outside the convention in

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[41] Article 25 is the result of another "compromise" by the delegates, which precludes the carrier from availing itself of the liability limits of Article 22 if there is "wilful misconduct" on the part of the carrier.

> the cases covered by article 17—which is the issue in the present case—seems to be entirely contrary to the system which these two articles [17 and 24] were designed to create.

Id.

The House of Lords concluded that the Warsaw Convention "was not designed" to provide a recovery for "all losses." (Pet. App. 64a). "It was designed instead to define those situations in which compensation was to be available." *Id.* Tseng's situation is one for which no compensation is available.

CONCLUSION

While courts do not want to deprive any passenger of a right of recovery, this treaty was not intended to provide full recovery for every alleged harm which may occur during international transportation by air. *Floyd*, 499 U.S. at 544-45. The expressed need for uniformity on the subject of carrier liability in international air transportation is frustrated when courts permit recovery outside the Convention, particularly with respect to an issue as integral to air transport as security. The Court should hold that neither EL AL nor any other carrier may be subject to over fifty distinct causes of action for a security search, such as was conducted by EL AL in this case.

The judiciary must uphold the terms and conditions of a treaty. Because the Warsaw Convention exclusively governs Tseng's personal injury claim against EL AL and because her claim fails to meet the conditions precedent to recovery under Article 17, the Court should reverse the judgment of the Court of Appeals.

Respectfully submitted,

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